TASHA SANDRA HAMMARD

AND

DARRYL JOHN HAMMOND

Versus

JOYCE ZULU

AND

LIONEEL JOSEPH FINAUGHTY

AND

KUDZANAI PASCAL MATENHESE

AND

THE MASTER OF THE HIGH COURT OF ZIMBABWE

AND

REGISTRAR OF DEEDS

AND

TWIGA INVESTMENTS (PRIVATE) LIMITED

IN THE HIGH COURT OF ZIMBABWE
MOYO J
12 FEBRUARY 2026 AND 5 AUGUST 2026

Opposed application

K Ngwenya for the applicant
Advocate P Dube, for the 2nd and 3rd respondents

MOYO J: Applicant seeks an order for a declaratur and consequential relief setting aside the registration of the estate of the late Garth Finaughty with 4th Respondent under DRB

418/13 and the setting aside of all actions and processes following that registration and cancellation of D T 000360/21 and DT 0000057/22 and that DT 1398/90 be declared valid together with costs at higher scale. Applicant case is that they are an adopted child in the estate being the subject matter of these proceedings and that the administration of the estate by the Zimbabwean Master was on the basis of fraud and must therefore be set aside.

Respondents have opposed the application on the premise that there was never any fraud and that the applicant has proved none. Respondents have also filed a counter application to the effect that the order of this court in which applicant sought registration of the Zambian court order must be set aside as the Zambian court order was not properly registered with this court. The Respondent raised several preliminary points 1st of which was that this court has no jurisdiction over 1st respondent as she is a foreigner (Zambian) and no leave has been sought to properly sue her. Respondents argued that in both the application for registration and the present applicant, the court has no jurisdiction on the 1st respondent. That applicants proceeded with both cases without properly founding jurisdiction over 1st Respondent. That the court cannot properly entertain this matter as Joyce Zulu (1st Respondent) was not properly brought before the court. Also that applicant herself is *peregrinus* who has not paid any security for costs.

Applicant on the other hand argued that this court has jurisdiction on the basis of the registration of the Zambian judgment with this court. That once the judgment was registered, section 6 of the Civil Matters and Mutual Assistance Act (Chapter 8:02) provides that the effect of the registration of a foreign judgment is that this court shall have control as if it were its judgment.

Respondents counter argued that what is before the court is a new cause of action over and above the registration of the estate and that this court must therefore make sure that it has jurisdiction over and above mere registration.

The section cited by the applicant under the Civil Matter and Mutual Assistance Act (supra) simply states that a registered judgment or order, once registered, the Zimbabwean court will have control over it as if it were its judgment, but that does not sound to me as conferring jurisdiction on the Zimbabwean courts where they have none because the section does not say so.

I accept Respondent's preliminary objection in that I do not hold the view that the registration of a foreign judgment in Zimbabwe by itself can give the Zimbabwean court jurisdiction over a foreign person if the court does not otherwise have the jurisdiction. There must be a difference in my view between the jurisdiction to recognise and enforce a foreign judgment and the jurisdiction over the person of the defendant or plaintiff as a person, concerning any other issues that may arise outside the enforcement of the registered order.

Where a foreign judgment is registered in Zimbabwe under the applicable law, the Zimbabwe court is not retrying the original dispute in my view. Instead, it simply accepts to recognise and enforce the foreign judgment. I hold the view that registration of the foreign order does not clothe this court with jurisdiction to revisit, alter, qualify and change the substance and meaning of the foreign judgment.

Registration in my view, makes the foreign judgment recognised and enforceable in Zimbabwe as if it were a Zimbabwean judgment but it does not create personal jurisdiction by the court over a foreigner where none has been established through the accepted avenues of bringing oneself and another person within the jurisdiction of the court as a *peregrinus*.

If the Zimbabwean courts have not established jurisdiction over applicant and 1st Respondent like in this case, registration alone cannot confere jurisdiction to make new and subsequently substantive orders either for them or against them. It is my considered view that without jurisdiction having been properly founded, over the *peregrinus*, registration alone cannot give the Zimbabwean court jurisdiction over the foreigner and subsequent power to make fresh orders or declare any rights.

For these reasons, l agree with the respondents and conclude that registration of a foreign judgment in Zimbabwe does not, of itself, confer jurisdiction over a foreigner where the court had a none. Jurisdiction must be properly founded in terms of the law. Registration of a foreign order in my view, merely enables enforcement of the judgment within Zimbabwe to the extent permitted by Zimbabwe law. Where jurisdiction has not been properly founded my view is that registration alone cannot create jurisdiction where none otherwise existed.

The preliminary point on Applicant being a *peregrinus*, together with 1st respondent is thus upheld and the application is accordingly struck off the roll with costs.

T. J Mabhikwa and partners, 1st and 2nd applicant's legal practitioners
Conolly and Homfmeyr legal pratictioners , 2nd and 5th respondents' legal practitioners